

Contentious Chamber

Decision on the merits 131/2024 of October 11, 2024

File number: DOS-2023-03283

Subject: Complaint regarding the cookie banner present on the RTL Belgium website

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, President, and Messrs. Christophe Boeraeve and Jelle Stassijns, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, represented by noyb – European Center for Digital Rights, located at Goldschlagstraße 172/4/3/2, 1140 – Vienna (AT), registered in Austria under company number ZVR 1354838270, hereinafter referred to as "the complainant"

The defendant: RTL Belgium, whose registered office is located at Avenue Jacques Georgin, 2 – 1030 Schaerbeek, registered under company number 0428.201.847, represented by Laurence Vandenbrouck, hereinafter referred to as "the defendant"

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on 01/06/2024.

In accordance with Article 56 of the Law of December 25, 2023, it only applies to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Files initiated before 01/06/2024, as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

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I. Facts and procedure

1. On July 19, 2023, the complainant filed a complaint with the Data Protection Authority against the defendant. The Contentious Chamber takes into account that the complaint form is dated July 18, 2023; however, it was submitted to the DPA during the night of July 18, 2023, to July 19, 2023, thus it is this latter date that must be considered as the formal date of the complaint's introduction.

2. The subject of the complaint concerns several elements related to the cookie banner present on the defendant's website. These would contravene the principles of the GDPR and the Framework Law.

3. On February 10, 2023, the complainant visited the defendant's website as part of a project initiated with one of her colleagues during her internship at noyb. She specifies that she took this initiative to verify whether certain websites – including that of the defendant – belonging to large Belgian media groups that had previously been the subject of a transaction with the DPA are compliant with the GDPR. During this visit, the complainant and her colleague identified potential violations of the GDPR. Following this observation, the complainant took a HAR file to document these potential violations. In the meantime, she mandated noyb, primarily to obtain technical assistance, as she was not able to prepare the HAR file herself. Subsequently, the complainant prepared a complaint, the grievances of which, identical to the arguments raised in her conclusions, will be developed in point 16. As part of her mandate, noyb reviewed and corrected the complaint prepared by the complainant. It should be noted

that there is some ambiguity in the complainant's statements regarding the preparation of the complaint, as she also mentioned that noyb had prepared the complaint and that she had simply written part of it and reviewed the rest.

4. On August 4, 2023, the First Line Service (hereinafter "SPL") requested noyb to inform them about the complainant's standing to act.

5. On August 25, 2023, the complaint was declared admissible by the SPL based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

6. On September 1, 2023, noyb responded to the SPL that the complainant demonstrates an interest to act as she is a concerned person, her personal data having been processed after she consented to the placement of cookies on the defendant's website. The processing of this data is considered by her and noyb to be unlawful, and the complainant believes that her rights have been affected. She relies on annexes in this regard. In any case, noyb states that demonstrating an interest to act on the part of the complainant is not a condition for the admissibility of the complaint.

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7.

On October 20, 2023, the Litigation Chamber proposes a settlement – previously communicated to the complainant – to the defendant.

8.

On November 27, 2023, the defendant does not find the terms of the settlement acceptable and therefore requests a reassessment of it. The defendant does not oppose a new settlement proposal.

9.

On December 1, 2023, the Litigation Chamber responds that it will withdraw the settlement proposal unless decisive elements are provided before December 6, 2023.

10.

On December 18, 2023, the Litigation Chamber formally withdraws the settlement proposal.

11.

On February 5, 2024, the Litigation Chamber decides, pursuant to Article 95, §1, 1° and Article 98 of the LCA, that the case can be addressed on the merits.

On the same date, the concerned parties are informed by registered mail of the provisions as set out in Article 95, §2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendant's response conclusions has been set for March 18, 2024, the deadline for the complainant's reply conclusions for April 8, 2024, and the deadline for the defendant's rejoinder conclusions for April 29, 2024.

12.

On February 8, 2024, the defendant agrees to receive all communications related to the case electronically and expresses its intention to exercise the right to be heard, in accordance with Article 98 of the LCA. In the same email, it requests a copy of the file (Article 95, §2, 3° LCA), which is sent to it on February 19, 2024.

13.

On February 9, 2024, the complainant agrees to receive all communications related to the case electronically. In the same email, it requests a copy of the file (Article 95, §2, 3° LCA), which is sent to it on February 19, 2024. Additionally, it requests that the proceedings continue in Dutch.

14.

On February 19, 2024, the Litigation Chamber decides to maintain the language of the proceedings in French, given that the complaint was filed in French, that the website of the defendant against which the grievances are directed is French-speaking, and that the complainant does not provide any other element in favor of a change of language for the continuation of the proceedings. Furthermore, considering the time taken to communicate the administrative file to the parties, the Litigation Chamber decides to extend the deadlines for exchanging conclusions. The new deadline for receiving the defendant's response conclusions is now set for March 25, 2024, the deadline for the complainant's reply conclusions for April 15, 2024, and the deadline for the defendant's rejoinder conclusions for May

6, 2024.

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15.

On March 25, 2024, the Litigation Chamber receives the response conclusions from the defendant. The defendant having submitted additional and summary conclusions, the content of the response conclusions is summarized in point 17.

16.

On April 15, 2024, the Litigation Chamber receives the reply conclusions from the complainant, which can be summarized as follows:

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Regarding the admissibility and receivability of the complaint, the complainant concludes as follows:

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Article 220, §2, 1° of the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter the "Framework Law") must be set aside by the APD as it violates Article 80.1 of the GDPR. The complainant considers that Article 26, §4 of the Special Law of January 6, 1989, on the Constitutional Court (hereinafter "the Special Law") is not applicable in this case, given that the APD is not a court of the judicial order, and therefore it should not refer a preliminary question before setting aside the aforementioned provision of the Framework Law. Furthermore, it adds that even if Article 26, §4 of the Special Law were applicable in the present proceedings, this would still not constitute an obstacle to setting aside Article 220, §2, 1° of the Framework Law, given that the primacy of European law is absolute. It relies in this regard on judgments from the Court of Justice of the European Union (hereinafter "CJEU");

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The mandate cannot be criticized for not being precise enough in that, on the one hand, the terms of the mandate allow for determining what noyb is authorized to act upon, and, on the other hand, Article 1984 of the Civil Code does not require that a mandate be drafted in more specific terms than the mandate in the present case;

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The complaint is admissible given that it has been signed by the chairman of the board of directors of noyb in accordance with Article 58 of the LCA. In this regard, the complainant indeed argues that the aforementioned article does not specify that the complaint must be signed specifically by the complainant, thus allowing a representative of a complainant to sign it. Furthermore, the complainant notes that the signature of the complaint does not constitute a ground for admissibility within the meaning of Article 60 of the LCA and that its absence cannot therefore lead to the inadmissibility or rejection of the complaint;

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The complainant is validly represented by noyb within the meaning of Article 80.1 of the GDPR. The fact that the complainant has completed an internship at noyb does not alter...

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not this finding. The complainant relies in particular on a ruling from the CJEU in which it recognizes that a complainant, who nonetheless had a subordinate relationship with noyb, is validly represented by the latter.

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Regarding the merits of the case, the complainant concludes as follows:

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Type 1 violation: the defendant has committed a breach of Articles 5.1.a), 6.1.a), and 7.1 of the GDPR, as well as Article 5.3 of the ePrivacy Directive and Article 10/2 of the Framework Law by not presenting the options "Accept All" and "Reject All" at the same level of information on its cookie banner. The cookie banner features an "Accept and Close" button and a "Learn More" button. However, there is no button allowing the rejection of all cookies. The requirement for buttons allowing the acceptance or rejection of cookies to appear at the same level of information arises in particular from the guidelines of the EDPB and the opinion of the majority of supervisory authorities;

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Type 2 violation: the defendant has committed a breach of Articles 5.1.a), 6.1.a), and 7.1 of the GDPR, as well as Article 5.3 of the ePrivacy Directive and Article 10/2 of the Framework Law by making misleading use of the colors of its buttons in its cookie banner. The button allowing the acceptance of cookie installation is adorned with a striking color, while the "More Information" button is the same color as the background of the cookie banner.

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Type 3 violation: the defendant has committed a breach of Articles 5.1.a) and 17.1.b) of the GDPR, as well as Article 5.3 of the ePrivacy Directive and Article 10/2 of the Framework Law in that it does not allow for a withdrawal of consent as simple as its granting regarding the placement of cookies. While granting consent requires only one click – or two, if necessary – the withdrawal of consent requires more steps. Furthermore, withdrawing consent requires navigating to a specific section of RTL's website.

17.

On May 6, 2024, the Contentious Chamber receives additional and summary conclusions from the defendant. Their content can be summarized as follows:

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Regarding the admissibility and receivability of the complaint, the defendant concludes as follows:

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The complaint is inadmissible in that noyb, mandated by the complainant, would not be validly constituted under Article 220, §2, 1° of the Framework Law in that noyb would not be an organ or a non-profit association validly constituted in accordance with Belgian law. Aware of the doubts that remain regarding the compatibility between this provision and Article 80.1, it nonetheless states that the Belgian provision cannot be set aside without the Constitutional Court having expressed itself on this matter after being seized of a preliminary question (Article 26, §4 of the Special Law). Therefore, if the Contentious Chamber intends to set aside Article 220, §2, 1° of the Framework Law, it must pose a preliminary question to the Constitutional Court under Article 26, §4 of the Special Law. In this regard, the defendant notes that the aforementioned provision of the Special Law does indeed apply to the Contentious Chamber;

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The mandate of the complainant is invalid in that it is not defined with sufficient precision. The defendant relies in particular on a ruling from the Court of Cassation in which a mandate – similar to that in the present case according to the defendant – was sanctioned for lack of precision. The defendant further highlights contradictions, such as the fact that the signatory of the mandate is not the same as that of the complaint, the fact that the mandate does not refer to Article 80.1 of the GDPR, and the fact that the mandate states that noyb is mandated to act before the APD, but that it can also unilaterally decide on judicial and extrajudicial actions it deems appropriate;

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It considers that the complaint should be declared inadmissible in that it was not signed by the complainant, but by the president of the board of directors of noyb. The defendant emphasizes that above the signature of the president of the board of directors of noyb appears the mention "For noyb." This indicates, according to the defendant, that the complaint is thus filed in the name and on behalf of noyb, whereas it should have been done in the name and on behalf of the complainant. Although it acknowledges that a third party may file a complaint on behalf of a complainant, it notes that sufficient interest in acting must still be demonstrated, which noyb fails to do according to it. In any case, it considers the signature, contrary to the complainant, as a condition of admissibility in that Article 58 of the LCA, which enshrines it, is presented in the law under the section "Referral and admissibility of a complaint or request";

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The defendant considers that noyb acts as a complainant and not as a representative. noyb does not demonstrate sufficient interest in acting since its claims, in the context of the case, do not aim to
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defend the concrete interests of the complainant, but rather align with the defense of her public

interests. The defendant adds that noyb makes very little reference to the complainant, and that the engagement of interns aimed at actively seeking violations of the GDPR is part of its business model.

• Regarding the merits of the case, the defendant concludes as follows:

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Type 1 violation: the defendant has not committed the alleged breaches. Firstly, neither the GDPR nor the Framework Law require the implementation of a button allowing the refusal of all cookies at the first level of information of the cookie banner. Furthermore, the guidelines of the European Data Protection Board (hereinafter "EDPB") and the opinions of the supervisory authorities constitute soft law and are therefore not binding. Additionally, the defendant claims that its cookie banner presents the "Accept All" and "Reject All" buttons at the same level.

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Type 2 violation: the defendant has not committed the alleged breaches. First of all, neither the GDPR nor the Framework Law require that the buttons allowing the acceptance or refusal of cookies be of the same color. Moreover, the colors chosen in this case are merely an expression of artistic freedom, reflecting the visual identity of the brand. Furthermore, the chosen colors provide a more coherent and aesthetically pleasing experience for users. It also considers that the use of distinct colors can particularly improve readability and accessibility of information for individuals with visual impairments. Finally, it believes that noyb does not explain how the colors used by it could "clearly mislead" users when confronted with the cookie banner.

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Type 3 violation: the defendant has not committed the alleged breaches, given that through the "Manage Cookies" section located on its website, the user can withdraw their consent regarding the placing of cookies at any time. In this regard, it cites an excerpt from decision 36/2024 of the Contentious Chamber as follows: "Furthermore, the cookie banner can easily be recalled to modify cookie settings, using a URL at the bottom of the page titled 'Manage cookies'." Finally, it states that it is not aware of any supervisory authority recommending the procedure described by noyb, which would consist of implementing a floating button, permanently visible, allowing consent to be withdrawn at any time.

18.

On June 20, 2024, the parties are informed that the hearing will take place on July 1, 2024.

19.

On July 1, 2024, the parties are heard by the Contentious Chamber.

20. On July 8, 2024, the minutes of the hearing are submitted to the parties.

21.

On July 12, 2024, the Contentious Chamber receives some comments from the complainant regarding the minutes, which are attached to them in accordance with Article 54 paragraph 2 of the Rules of Procedure.

22.

On July 17, 2024, the Contentious Chamber receives some comments from the defendant regarding the minutes, which are attached to them in accordance with Article 54 paragraph 2 of the Rules of Procedure.

II. Motivation

II.1. Regarding the procedure

23.

During the hearing held on July 1, 2024, the defendant made two preliminary remarks that need to be addressed. It raises with the Contentious Chamber (i) that a procedure sharing some similarities with the present case is pending before the Market Court. In this procedure, a settlement proposal had been submitted to a data controller, which was unilaterally withdrawn by the Contentious Chamber. The data controller subsequently appealed to the Market Court, contesting the unilateral withdrawal of the settlement proposal by the Contentious Chamber. The defendant thus asks whether it would not be appropriate to suspend the present procedure until the Market Court issues its ruling. (ii) Furthermore, the defendant points out to the Contentious Chamber that the complainant has worked as a lawyer in

the law firm that represented the DPA before the Market Court in the previously mentioned case. It believes that this could suggest a potential conflict of interest or a possible breach of the principle of impartiality – both in its subjective and objective dimensions.

(i) Regarding the remark concerning the pending procedure before the Market Court

24.

The Contentious Chamber, as it had responded at the time of the hearing, emphasizes that the pending procedure before the Market Court is not comparable to the present case. Indeed, while the procedure before the Market Court to which the defendant refers...

2 The Market Court has since issued its ruling, see in this regard the Judgment of the Brussels Court of Appeal (Market Court section)

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refers to a settlement proposal that was unilaterally withdrawn by the Contentious Chamber and was contested by the party to whom the proposal had been submitted. It should be noted that in the present case, the defendant rejected the terms of the settlement proposal that was offered to them. When the Contentious Chamber informed the defendant that it would proceed with the withdrawal of the proposal, the defendant did not object. Therefore, there is formally no longer a settlement proposal in the present case, and the procedure continues validly with a substantive examination of the case file.

(ii) Regarding the potential conflict of interest or the potential infringement of the principle of impartiality

25. Although the principle of impartiality applies to administrative authorities, including the Contentious Chamber, it should be noted that according to consistent case law from the Council of State: “the general principle of impartiality must be applied to any body of the active administration. It is sufficient that an appearance of bias may have raised in the applicant a legitimate doubt regarding the ability to address their case impartially. However, this principle only applies insofar as it is compatible with the specific nature, and notably with the structure of the active administration. Furthermore, the impartiality of a collegiate body can only be called into question if, on the one hand, specific facts that raise suspicions of bias regarding one or more members of that body can be legally established and, on the other hand, it appears from the circumstances that the bias of that or those members may have influenced the entire body. It is up to the party alleging that the authority did not act with independence, impartiality, and diligence to provide evidence of this.”

26. It is therefore up to the party invoking the breach of the principle of impartiality to provide evidence of specific facts from which it should be concluded that the principle of impartiality has been violated.

27. Objective impartiality is distinguished from subjective impartiality.

28. The Contentious Chamber emphasizes, firstly, that the law firm in question was selected following a public procurement process (in tempore non suspecto), and must therefore adhere to the principles of equality, non-discrimination, transparency, and proportionality with respect to all bidders, as well as base its award criteria on objective standards. Furthermore, the complainant acts as a concerned party, and this is outside of any connection with her profession as a lawyer, which she previously practiced for the law firm in question. Since the defendant does not provide further elements to demonstrate that the Contentious Chamber would have given the appearance of bias, the Contentious Chamber cannot conclude that it has violated the principle of objective impartiality.

3 C.E., November 30, 2022, 255.145, Lemaire and Loslever; see also C.E., January 19, 2022, 252.684, XXX.

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29.

The Contentious Chamber notes that the defendant does not provide any elements demonstrating how it could have acted with bias, nor does it show that it could have, for example, intervened in the present proceedings in a manner that would undermine the objectivity of the debates. Ultimately, the defendant does not provide evidence of the concrete actions of the Contentious Chamber that would allow for a conclusion that it acted with partiality.

30. In conclusion, the Contentious Chamber considers that there is no risk of a conflict of interest in this case and that it has not violated the principle of impartiality, whether in its objective or subjective

dimension.

II.2. Regarding the admissibility and receivability of the complaint

II.2.1. Regarding the constitution of noyb

31.

Article 80.1 of the GDPR states that "the data subject has the right to mandate a body, organization, or non-profit association that has been validly established in accordance with the law of a Member State, whose statutory objectives are of public interest and is active in the field of protecting the rights and freedoms of data subjects in the context of the protection of personal data concerning them, to lodge a complaint on their behalf, exercise on their behalf the rights referred to in Articles 77, 78, and 79, and exercise on their behalf the right to obtain compensation referred to in Article 82 when the law of a Member State provides for it."

32.

Article 220, §2 of the Framework Law specifies that:

"§ 2. In the disputes provided for in paragraph 1, a body, organization, or non-profit association must:

1° be validly established in accordance with Belgian law;

2° have legal personality;

3° have statutory objectives of public interest;

4° be active in the field of protecting the rights and freedoms of data subjects in the context of the protection of personal data for at least three years.

§ 3. The body, organization, or non-profit association provides proof, by presenting its activity reports or any other document, that its activity has been effective for at least three years, that it corresponds to its social purpose, and that this activity is related to the protection of personal data."

33. The Contentious Chamber has already had the opportunity to express doubts regarding the compatibility of certain aspects of the Belgian provision with that of the GDPR.

34. The primacy of European law implies the exclusion of any national provision that cannot be interpreted in accordance with a European legal standard—this exclusion being a duty for all state bodies, including judicial and administrative authorities responsible for applying European law within their respective competences.

35. If there are reasons to believe that a law—understood in the sense of Article 22 of the Constitution—would violate "a fundamental right guaranteed in a totally or partially analogous manner by a provision of Title II of the Constitution as well as by a provision of European law [...]", it is then the responsibility of the jurisdiction before which this situation arises to refer a preliminary question to the Constitutional Court.

36. The CJEU has ruled that an incidental procedure for the constitutional review of national laws respects Union law, provided that this procedure meets four conditions, which are as follows:

- Other national jurisdictions remain free "to refer, at any time during the procedure they deem appropriate, and even at the end of the incidental constitutional review procedure, any preliminary question they deem necessary to the Court";

- Other national jurisdictions remain free "to adopt any necessary measures to ensure the provisional judicial protection of the rights conferred by the legal order of the Union."

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Other national jurisdictions remain free "to leave the national legislative provision in question inapplicable, at the end of such incidental proceedings, if they consider it contrary to Union law";

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"It is for the referring court to verify whether the national legislation in question can be interpreted in accordance with these requirements of Union law."

37.

The Contentious Chamber notes that the special legislator has limited the scope of Article 26, §4 of the Special Law to ordinary and administrative jurisdictions only.

38. However, the Contentious Chamber is not within the jurisdiction of the judiciary – it is indeed an administrative authority.

39. Consequently, Article 26, §4 of the Special Law does not apply to the Contentious Chamber, and

furthermore, it has neither the obligation nor the possibility to submit a preliminary question to the Constitutional Court.

40. Given that there is no other incidental procedure for constitutional review, the Contentious Chamber must directly do everything necessary to give full effect to the European legal standards it must apply within the scope of its competencies – namely, Article 80.1 of the GDPR concerning the present case.

41.

In continuation of what has been stated in point 33, the Contentious Chamber asserts that Article 220, §2, 1° of the Framework Law is contrary to the aforementioned provision of the GDPR in that it restricts the scope of the latter, making them thus irreconcilable.

42.

Consequently, the application of Article 220, §2, 1° of the Framework Law should be set aside.

II.2.2. Validity of the mandate

43. Regarding the representation mandate, the Contentious Chamber notes that it mentions the data of the mandator and the mandatary, and that the former mandates the latter to represent her before the Data Protection Authority (DPA) and to take any necessary action to enforce her rights regarding the collection and processing of her data on the defendant's website. The Contentious Chamber adds that, in the annexes to the complaint form, the mandate is titled as follows: "Document 1 – Representation Agreement under Article 80(1) GDPR."

44. First of all, concerning this last element, the Contentious Chamber cannot agree with the defendant's reasoning when it claims that noyb attempted to "conceal" the absence of reference to Article 80.1 of the GDPR in the body of the mandate. On the one hand, noyb asserts that this mention was already present at the time of the signing of the mandate. On the other hand, the Contentious Chamber notes that the validity of the mandate must, if necessary, be examined at the time of the filing of the complaint. Therefore, it does not seem plausible that noyb sought to "conceal" the absence of reference to Article 80.1 of the GDPR – to the strict extent that the absence of reference to Article 80.1 of the GDPR would render the mandate invalid – given that it would have been sufficient to redo the mandate. Consequently, the mandate should be read in light of its title as an annex. Read this way, there is no doubt that the mandate was concluded within the framework of Article 80.1 of the GDPR.

45. Next, regarding the possible contradictions of the mandate that the defendant points out, the Contentious Chamber recalls that it could not assess the mandate too restrictively. As an administrative authority, the Contentious Chamber oversees the proper implementation of the GDPR. In this capacity, it is empowered to impose one or more of the sanctions listed in Articles 95, §1 or 100, §1 of the LCA – and this, in particular, to protect the fundamental rights of the data subjects. The mandate, as it appears in the case file, allows for the identification of the parties to this contract, the data controller against whom the complainant addresses her grievances, the supervisory authority with which it is intended to file a complaint, and a reference to Article 80.1 of the GDPR under which the mandate is adopted. These elements justify the actions that noyb undertakes on behalf of and for the complainant before the DPA. Imposing further conditions on the mandate would undermine the oversight duty of the Contentious Chamber, as well as the rights of the data subjects. For all practical purposes, the Contentious Chamber specifies that the elements of the mandate cited above cannot be interpreted as setting any minimum threshold.

46. Finally, and in any case, the Contentious Chamber notes that Article 17 of the Judicial Code does not apply to the Contentious Chamber, which is an administrative authority as explained in point 38.

II.2.3. The lack of signature on the complaint

47.

Article 58 of the LCA provides that "Any person may file a complaint or a written request, dated and signed, with the Data Protection Authority."

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48. Article 60 of the same Law states that, in the context of examining the admissibility of the complaints it receives, the SPL verifies that the complaint is "drafted in one of the national languages," that it "contains a statement of facts and the necessary indications to identify the processing it concerns," and that the complaint "falls within the jurisdiction of the Data Protection Authority."

49. Contrary to what noyb argues, these two provisions should not be read separately, but rather together. Thus, the formal conditions prescribed by Article 58 of the LCA must also be taken into account in the admissibility examination referred to in Article 60 of the same Law.

50. The Contentious Chamber notes that the complaint form was signed by the chairman of the board of directors of noyb, with the following mention: "For noyb."

51. In this regard, the Belgian legislator clarified that the signature must come from "the competent person in the matter," but not necessarily from the complainant. Thus, it must be understood that at the very least, the representative may sign the complaint form. This is also derived from Article 80.1 of the GDPR, which states that the data subject has the right to mandate "an organization, a non-profit organization, or an association [...] to submit a complaint on their behalf, exercise on their behalf the rights referred to in Articles 77, 78, and 79 [of the GDPR]."

52. As a legal entity, noyb must be represented by one of its members in the acts it performs. Thus, the chairman of the board of directors of noyb signed the complaint form – in the exercise of this function, which empowers him to perform such acts.

53. It cannot be inferred from the mention "For noyb" that noyb acts as a complainant, since this mention specifically aims to engage the responsibility of noyb, and not that of the chairman of the board of directors of noyb in his capacity as a natural person.

II.2.4. The interest to act

54. The Contentious Chamber is not unaware of the content of its decision 22/2024; however, it is necessary to highlight the differences that distinguish the facts arising from the aforementioned decision from the facts arising from the present decision.

55. Although the complainants share, in both decisions, the fact that they completed an internship at noyb, and, in this context, consulted websites that subsequently motivated the filing of a complaint with the DPA, it should not be overlooked that at the origin of the facts examined in decision 22/2024, noyb had implemented a large-scale plan aimed at filing dozens of complaints against multiple data controllers with various supervisory authorities – including the DPA. Furthermore, the complainant had explicitly acknowledged being assigned various files, among which was the website of the defendant in the aforementioned decision. These elements – combined with others – led the Contentious Chamber to consider that the mandate concluded between the complainant and noyb was then fictitious.

However, such a conclusion cannot occur in the present case. The complainant – a French speaker – indeed consulted the French-speaking website of the defendant based on a personal initiative, which does not fall within the framework of the other coordinated projects of noyb. There is no principle that opposes noyb representing one of its employees or interns.

56. Moreover, no link can be established between the present complaint and the complaints filed against the 15 Belgian websites mentioned in noyb's press release from July 2023. While it is clear that some coordination took place to a certain extent in this case, it is not established that this coordination occurred before the emergence of the complainant's grievances. In any case, the elements of the present case do not allow for the establishment that noyb exerted any pressure on the complainant.

57. Therefore, nothing supports the assertion that the mandate is fictitious.

58. In the present case, the relationship between the complainant and noyb could be schematized as follows:

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64. Furthermore, regarding the collection and granting of consent online, it should be noted that a binary reading cannot suffice. The Contentious Chamber believes that it is appropriate to examine each situation on a case-by-case basis, based on the material conditions of the collection and granting of consent. Moreover, the Contentious Chamber emphasizes that the collection and granting of consent online has certain particularities. The Internet has significantly evolved practices and occupies the time of the majority of citizens, particularly young people. Thus, a consent that could be described as routine is established. Internet users navigate from website to website, from page to page, and are consequently confronted with a large number of cookie banners. In doing so, the warning effect of the cookie banner diminishes, and the individuals concerned may grant their consent by default, due to the fatigue thus caused. This observation is exacerbated when it is taken into account that data controllers

sometimes implement designs that encourage users to accept the placement of cookies.

65. These reasons then impose on the Contentious Chamber the duty to examine the present case with the utmost sensitivity.

II.3.1. Regarding the articulation of the GDPR and the Framework Law with the guidelines

66. The Contentious Chamber intends to respond here to the arguments put forward by the defendant regarding violation type 1 (see points 72 to 80, "Regarding the absence of a 'Reject All' button at the first level of the cookie banner") and 2 (see points 81 to 95, "Regarding the misleading use of button colors"), whereby the defendant asserts that neither the GDPR nor the Framework Law require the establishment of a 'Reject All' button at the first level of the cookie banner or the use of "buttons and characters of the same size, importance, and colors." The defendant adds that the guidelines of the EDPB and the supervisory authorities have no binding value as they constitute soft law.

67. To begin with, the Contentious Chamber recalls that the GDPR, as a European Regulation, is a legal act directly applicable across all Member States. In doing so, the GDPR has a general scope. It cannot be expected that the European legislator, in adopting this Regulation, intended to define in detail the specific modalities of all practices related to this act. On the contrary, it has established general and abstract rules to which the persons and entities concerned must comply. The supervisory authorities, in particular, must apply these principles and rules to concrete cases, which take place in the digital society, where technological developments have been made.

17 In English, it is customary to speak of "Click fatigue"; in this regard, see EDPB, Guidelines 5/2020 on consent under Regulation (EU) 2016/679 of May 4, 2020, point 87, available at:

https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_fr.pdf.

18 Summary conclusions of the defendant, p. 22.

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within them are very rapid. It is in this context that the supervisory authorities must adopt decisions that are adequate and proportionate. The decision-making practice of the authorities can – and must – indeed evolve in light of legal and technological developments. The fact that an authority is required to evolve its decision-making practice does not constitute an obstacle to the imposition of sanctions, such as an administrative fine for example.

68. Likewise, in adopting the Framework Law, the Belgian legislator did not intend to define specific modalities for all practices related to this law.

69. In this regard, the GDPR, in its Article 70.1.e, specifically delegates to the EDPS the mission "to publish guidelines, recommendations, and best practices" on any issue concerning its application, with a view to promoting its consistent application. The importance of this consistency is also reiterated in Articles 57.1.g and 70.1.u of the GDPR. It should also be noted that Article 57.1.d of the GDPR assigns the task to the supervisory authorities to encourage awareness among data controllers and processors regarding the obligations that they have under the GDPR.

70. In this way, while it is certainly accurate to say that the guidelines thus published are not binding in that they constitute soft law, it would conversely be erroneous to deny them any legal effect. This denial ultimately amounts, implicitly, to challenging the authority of the EDPS and the supervisory authorities, which possess the appropriate expertise to carry out the tasks assigned to them and which have been recalled in the preceding paragraph – although this does not mean that the parties to a case cannot contest the legal interpretation made by the EDPS or a supervisory authority of the GDPR.

71.

In conclusion, the Contentious Chamber recalls that the guidelines of the EDPS and the supervisory authorities specify the provisions of the GDPR, but it is the violation of these provisions – which are subject to concrete application to a specific case – that justifies the imposition of corrective measures or a sanction.

II.3.2. Regarding the absence of a "Reject All" button at the first level of the cookie banner

72.

Article 4.11 of the GDPR defines consent as "any manifestation of will, free, specific, informed, and unambiguous by which the data subject accepts, by a declaration or by a clear affirmative action, that personal data concerning them be subject to processing." Recital 42 of the GDPR specifies that

"consent...

19 Draft law of June 11, 2018 on the protection of natural persons with regard to the processing of personal data, Explanatory memorandum, Parl. Doc., Ch. repr., ord. sess. 2017-2018, no. 54-3126/1, p. 21.

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should not be considered as having been given freely if the person concerned does not have a genuine freedom of choice or is unable to refuse or withdraw their consent without suffering detriment.

73.

Article 5.1.a) of the GDPR states that personal data must be processed in a manner that is "lawful, fair, and transparent." To be lawful, the processing must be based on the consent of the data subject or any other lawful basis set out in Article 6.1 of the GDPR.

74.

By application of these provisions, it must be concluded that for each cookie banner, it should be as easy to consent to the placement of cookies as it is to refuse them. Consequently, the button allowing acceptance of cookies and the button allowing refusal of cookies must be presented together at every level of the cookie banner where the button allowing acceptance of cookies appears. Otherwise, the consent obtained cannot be considered to have been given freely and unequivocally.

75.

The Contentious Chamber notes in this case that by not presenting the "Accept All" and "Reject All" buttons at the first level of the cookie banner – with the first button being the only one present – the defendant not only makes the option to refuse cookie placement less visible to the data subjects but also materially makes it more difficult for them to refuse, given that a greater number of actions is required. In this sense, the data subjects – such as the complainant – are encouraged to accept the placement of cookies.

76.

The EDPB20 considers that an incentive is not necessarily contrary to the GDPR. It cites, for example, the case where a data controller, granting general discounts on the purchase of clothing and fashion accessories, requests the consent of the data subject to place cookies in order to better target their preferences. The incentive in this case is then permitted, provided that the data subject would not suffer any detriment if they were to withdraw their consent.

77.

In the present case, however, the incentive cannot be considered authorized or valid. Unlike the incentive presented in the previous example, it offers no benefit to the data subject. However, a free choice implies that the button allowing refusal of all cookies is offered at least at the same level as the one allowing acceptance of their placement²¹. Furthermore, it should be noted that the cookie banner requires users to make a choice. This constitutes a practice

20 EDPB, Guidelines 5/2020 on consent under Regulation (EU) 2016/679 of May 4, 2020, point 50, available at:

https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_fr.pdf.

21 EDPB, Guidelines 5/2020 on consent under Regulation (EU) 2016/679 of May 4, 2020, point 13, available at:

https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_fr.pdf.

In particular, the following excerpt: "The adjective 'free' implies a real choice and control for the data subjects. [...]".

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issue of "cookie wall"²². Consequently, the consent granted for the placement of cookies on the defendant's website was not given freely.

78.

Furthermore, the consent given by the data subject cannot be considered as having been given unequivocally. Indeed, by not informing the complainant of the possibility to reject the placement of cookies, it cannot be considered that the latter could have consented through a clear affirmative act to the placement of cookies.

79.

The findings established in the preceding paragraphs, concerning the first level of the cookie banner, are not altered by the fact that at other levels of the defendant's website the "Accept All" and "Reject All" buttons are presented together. Requiring a data controller to make it as easy to refuse the placement of cookies as it is to accept them constitutes a concrete application of the validity conditions of consent as defined by Article 6.1.a) of the GDPR. The verification of the validity of consent must then focus on the moment when consent is actually granted – or not²³. Given that the complainant consented to the placement of cookies at the first level of the cookie banner, the validity of the consent collected must only be considered at this level. This is all the more true since, by definition, data subjects are first confronted with the first level of the cookie banner. Furthermore, the Contentious Chamber reminds that it is the responsibility of the data controller to demonstrate that they have obtained the consent of the data subject in accordance with Article 7.1 of the GDPR.

80. In conclusion, the Contentious Chamber finds that the defendant has violated Article 6.1.a) of the GDPR, as well as Article 10/2 of the Framework Law.

II.3.3. Regarding the misleading use of button colors

81.

Regarding the first argument of the defendant, concerning the fact that neither the GDPR nor the Framework Law would require data controllers "to use buttons and characters of identical size, importance, and color," the Contentious Chamber notes that the defendant is mistaken in thinking that the complainant would support this idea. The grievance in this regard claims that the cookie banner takes a form that encourages data subjects to click on the "Accept and Close" button, such that the consent granted does not meet the conditions set forth by the GDPR. Moreover, the Contentious Chamber refers the parties to points 66 to 80.

82.

Next, the Contentious Chamber observes that on the defendant's cookie banner (see below), three colors appear. The text uses a white font color, and the background of the banner is dark blue. The "Learn More" button, which ultimately allows the rejection of cookie placement, is the same blue as the background but is separated by white borders. The "Accept and Close" button is a striking orange color.

83. As stated in point 72, consent must have been given freely, specifically, informed, and unequivocally. In line with what has been developed in point 71, requiring a data controller to ensure that the colors of the buttons used are not likely to clearly direct users towards the choice of consenting to the placement of cookies constitutes a requirement for respecting the notably free and unequivocal nature that consent must have as understood in Article 6.1 of the GDPR.

84. In this case, the Contentious Chamber is of the opinion that the use of colors by the defendant is likely to clearly encourage users to click on the "Accept and Close" button, in that the button stands out particularly from the rest of the cookie banner, and that it is thus on this button that users' attention will primarily gravitate. Therefore, the consent of the complainant collected by the defendant regarding the placement of cookies is not valid.

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85. First of all, the European Court of Human Rights defines artistic freedom of expression as that which "allows participation in the public exchange of cultural, political, and social information and ideas of all kinds (see, *mutatis mutandis*, the judgment in *Müller and Others v. Switzerland* of May 24, 1988, Series A No. 133, p. 19, § 27). Those who create, interpret, disseminate, or exhibit a work of art contribute to the exchange of ideas and opinions essential to a democratic society [...]"²⁴.

86. Next, the Contentious Chamber recalls that the right to data protection is a fundamental right. The European legislator has implemented this fundamental right, notably in the GDPR and the ePrivacy Directive. The choices made by the legislator, including regarding the conditions of consent stipulated in the legislative texts, indicate the threshold of requirements that data controllers must meet before they can use this consent for cookie placement and subsequent processing (art. 6.1.a of the GDPR and 10/2 of the Framework Law). The data controller has a certain degree of discretion in implementing the conditions set out in the aforementioned legislative bases; however, the controller cannot choose the conditions of consent. It is the duty of the Data Protection Authority (DPA) to

enforce compliance with the GDPR and the ePrivacy Directive.

87. Regarding the artistic freedom of expression invoked by the defendant, the Contentious Chamber notes that Article 85.1 of the GDPR provides that: "Member States shall reconcile, by law, the right to the protection of personal data under this Regulation and the right to freedom of expression and information, including processing for journalistic purposes and for academic, artistic, or literary expression."

88. Recital 153 of the same Regulation specifies in this regard that such reconciliation must take place when it proves necessary. It also states that the concepts related to this freedom should be interpreted broadly in light of the importance of the right to freedom of expression.

89. The Belgian legislator has provided in Article 24 of the Framework Law exceptions to the application of certain provisions of the GDPR for processing for journalistic purposes and for academic, artistic, or literary expression, as follows:

"§ 1. Processing of personal data for journalistic purposes means the preparation, collection, writing, production, dissemination, or archiving for the purpose of informing the public, using any media, and where the data controller imposes journalistic ethical rules.

24 Eur. Court H.R. (Grand Chamber), judgment in *Karatas v. Turkey*, July 8, 1999, point 49, accessible via:

<https://hudoc.echr.coe.int/eng?i=001-62826>.

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§ 2. Articles 7 to 10, 11.2, 13 to 16, 18 to 20, and 21.1 of the Regulation do not apply to the processing of personal data carried out for journalistic purposes and for academic, artistic, or literary expression.

§ 3. Articles 30.4, 31, 33, and 36 of the Regulation do not apply to processing for journalistic purposes and for academic, artistic, or literary expression when their application would compromise a planned publication or constitute a prior control measure for the publication of an article.

§ 4. Articles 44 to 50 of the Regulation do not apply to transfers of personal data carried out for journalistic purposes and for academic, artistic, or literary expression to third countries or to international organizations to the extent necessary to reconcile the right to the protection of personal data and the freedom of expression and information.

§ 5. Article 58 of the Regulation does not apply to the processing of personal data carried out for journalistic purposes and for academic, artistic, or literary expression when its application would provide indications about information sources or constitute a prior control measure for the publication of an article."

90. First, it should be noted that Articles 5.1.a and 6.1 of the GDPR are not subject to exemption regarding processing carried out for the purposes referred to in point 87.

91. Next, the Contentious Chamber notes that it follows from the report on the work undertaken by the Cookie Banner TaskForce that, regarding colors [and contrasts], no general banner model could be imposed on data controllers. The same report further states that the validity examination of the cookie banner must then be conducted on a case-by-case basis, in order to verify whether the colors or contrasts used do not blatantly direct users towards a choice that would not correspond to their preferences regarding the sharing of personal data²⁵.

92. This means that data controllers, whose compliance with the GDPR must be assessed on a case-by-case basis, have a great deal of discretion in choosing the colors [and contrasts] in their cookie banners. They can thus demonstrate creativity in reflecting their brand identity. This discretion also allows data controllers to both comply with the GDPR and respect the principles of artistic freedom.

25 EDPB, Report of the work undertaken by the Cookie Banner Taskforce, available via (in English only):

https://www.edpb.europa.eu/system/files/2023-01/edpb_20230118_report_cookie_banner_taskforce_en.pdf.

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requirements imposed on them under the GDPR and the respect for the principles of inclusive design,

for example.

93. Furthermore, the Contentious Chamber emphasizes that in this case, the defendant could very well maintain the same colors used in its cookie banner, provided that it reverses the color used for the button allowing the acceptance of cookie placement and the color used for the button ultimately allowing the refusal of cookies. As stated in point 83, data controllers must ensure that the use of a color does not clearly encourage users to consent to the placement of cookies on their browser. Conversely, there is nothing preventing data controllers from using a button color that would similarly encourage users to refuse the placement of cookies.

94. Ultimately, the defendant wrongly argues that the requirements to which the choice of colors used in its cookie banner is subject would infringe upon its artistic freedom of expression and the coherent and aesthetically pleasing experience it wishes to provide to its users, including those with visual impairments.

95. For the reasons outlined above, the Contentious Chamber concludes that the defendant has violated Articles 5.1.a) and 6.1.a) of the GDPR, as well as Article 10/2 of the Framework Law.

II.3.4. Regarding the modalities for withdrawing consent

96. Article 7.3 of the GDPR states that "The data subject has the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. The data subject shall be informed thereof before giving consent. It shall be as easy to withdraw as to give consent."

97. The EDPB specifies that a violation of Article 7.3 of the GDPR results in the non-compliance of the consent mechanism of the data controller.

98. It follows from the report on the work undertaken by the Cookie Banner Taskforce that a specific model for withdrawing consent cannot be imposed on data controllers, including the solution of a banner or a floating button (or "hovering solution"). Furthermore, the same report indicates that a link located in a visible and standardized position constitutes an appropriate solution for complying with Article 7.3 of the GDPR.

26 EDPB, Guidelines 5/2020 on consent under Regulation (EU) 2016/679 of May 4, 2020, point 116, available at: https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_fr.pdf.

27 EDPB, Report on the work undertaken by the Cookie Banner Taskforce of January 17, 2023, point 35, available via (in English only): https://www.edpb.europa.eu/system/files/2023-01/edpb_20230118_report_cookie_banner_taskforce_en.pdf.

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99. The Contentious Chamber adds that the duty to provide data subjects with the ability to withdraw their consent as easily as they grant it must be balanced with the usability comfort of the data subjects. This duty should not make the browsing experience on a data controller's website burdensome for users – if it were so, it would be unreasonable.

100. In this case, the Contentious Chamber notes that the defendant's website provides users with a "Manage Cookies" button at the bottom of each of its navigation pages. In this regard, the Contentious Chamber observes that this button is reasonably accessible for users.

101. Furthermore, within the options presented in the "Manage Cookies" button, there are "Accept All" and "Reject All" buttons. Users thus have the option to withdraw their consent through a single button.

102. The fact that the withdrawal of consent does not occur under the same modalities used for its collection is not a problem here, as otherwise, the interests of the users (and of the complainant more specifically) would be adversely affected.

103. Consequently, the Contentious Chamber decides to dismiss this complaint.

III. Corrective and provisional measures

104. Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a non-suit;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;

- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;

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- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° forward the file to the Public Prosecutor of Brussels, who will inform it of the follow-up actions taken on the file;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

III.1. Compliance Order

105. The Contentious Chamber considers it appropriate to impose two compliance orders on the defendant, based on the identified breaches.

106. Order 1: The Contentious Chamber imposes on the defendant the addition of a button that clearly allows for the rejection of cookie deposits with a single click, at the same level as the button allowing for the acceptance of cookie deposits at each level of the cookie banner where the button for accepting cookie deposits is located.

107. Order 2: The Contentious Chamber imposes on the defendant the use of colors and contrasts that are not obviously misleading. The button that clearly allows for the rejection of cookie deposits must thus be displayed at least as prominently as the one that allows for acceptance. The Contentious Chamber specifies that the defendant, however, has the option to retain the colors currently used in its cookie banner, provided that it reverses the color used for the button allowing for the rejection of cookie deposits with that allowing for acceptance; it refers to this point in regard to point 94.

108. As examples, the Contentious Chamber includes below an illustration from its Cookie Checklist²⁸, which constitutes a good practice. However, the implementation of these orders is solely the responsibility of the defendant.

28 <https://www.autoriteprotectiondonnees.be/publications/checklist-cookies.pdf>.

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109. Each of these two orders must be complied with no later than the 45th day following the notification to the defendant of this decision. Within the same timeframe, the defendant shall communicate to the Contentious Chamber as well as to the complainant a document reflecting how it has complied with the two orders issued.

110. In case of inaction – even apparent – following the 45th day after the notification to the defendant of this decision, the Contentious Chamber will notify the defendant. From this notification, the penalty will be implemented. This will only cease upon notification from the Contentious Chamber recognizing that the defendant has fully complied with the orders in question.

III.2. Accessory Sanction: the Penalty

III.2.1. Preliminary Considerations

111. The penalty has the particularity of being fully conditional. The amount to be paid is indeed uncertain. The defendant first has a period to comply or to appeal the decision. It is only in the event of non-compliance on its part after a period of 45 days from the notification of this decision that the penalty will be applied.

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will be implemented. Consequently, the amount of the penalty is variable, and it may even be zero, if applicable.

112. The penalty thus differs from the administrative fine in that it constitutes an indirect means of enforcement of the main sanction(s) in order to comply with the law in force, whereas the administrative fine has a punitive nature. The penalty therefore also has an accessory character. The penalty and the administrative fine thus differ both in their nature and in the objectives they pursue.

113. By a ruling dated February 19, 2020, the Market Court considered the following:

"Before a sanction is imposed, the offender must be informed of the nature of the sanction being considered and its amount (in the case where a fine is contemplated). The offender must be warned (in order to avoid unnecessary sanctions) and must have the opportunity to defend themselves regarding the amount of the fine proposed by the Dispute Chamber before the sanction is effectively imposed and implemented."²⁹

114. Following this ruling, the president of the Dispute Chamber then considered that sending a sanction form was also necessary when the Dispute Chamber is contemplating the imposition of a penalty³⁰.

115. The position of the Dispute Chamber in this regard is now quite different, and it considers that it should not communicate to the defendant its intention to impose a penalty, for the following two reasons:

a) The obligation to send a sanction form to the defendant before a decision is made originates from the case law of the Market Court. It is therefore an obligation that adds to the existing legal framework. This additional step in the procedure of the Dispute Chamber burdens it and extends it over time. While the Dispute Chamber acknowledges all the advantages of this, it notes nonetheless that this strictly national obligation can hinder the coherent application of the GDPR among the various supervisory authorities. In this way, the Dispute Chamber considers that it is appropriate to interpret this obligation restrictively, favoring an interpretation that does not contradict

²⁹ Free translation of the ruling of the Brussels Court of Appeal (Chamber 19A, Market Court section) of February 19, 2020, 2019/AR/1600. The original version of the translated excerpt reads: "The offender must be informed of the nature of the sanction being considered and of its extent (in the case where a monetary fine is being considered) before a sanction is imposed. The offender must be warned (in order to avoid unnecessary sanctions) and given the opportunity to defend themselves regarding the amounts of the fine proposed by the Dispute Chamber before the sanction is effectively imposed and executed."

³⁰ See the Penalty Policy of the Dispute Chamber dated December 23, 2020, <https://www.autoriteprotectiondonnees.be/publications/politique-en-matiere-d-astreinte.pdf>.
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with the objectives that the legislator pursued in granting their powers to the supervisory authorities;

b) As outlined in point 112, the nature of the penalty payment fundamentally differs from that of an administrative fine. The penalty payment is indeed an ancillary sanction, aimed in addition at encouraging the defendant to comply with the main sanction³¹. In this sense, it is widely recognized in doctrine that the penalty payment does not have a criminal character³². In conclusion, the choice to impose a penalty payment falls within the strict discretion of the Contentious Chamber and cannot therefore be contested by a party to the case³³. The Belgian legislator has deliberately chosen to confer this competence to impose penalty payments to the APD; the will of the Belgian legislator must then be acknowledged and respected.

116. Furthermore, the Contentious Chamber recalls that its decisions do not have precedential value. The policies of the Contentious Chamber do not have binding force. The Contentious Chamber acknowledges that the publication of these policies establishes a certain trust with the public and is committed, in any case, to communicate transparently with it. However, this cannot constitute an obstacle to the development of the practices of the Contentious Chamber as well as the legal framework implemented, which are essential.

117. In light of the reasons mentioned above, the Contentious Chamber exercises its prerogative to impose penalty payments on the defendant in this case and does not consider that it must inform the defendant in advance through a sanction form.

III.2.2. Practical modalities of the penalty payment

118. In order to give the defendant the necessary time to comply with the injunctions pronounced in this decision, the penalty payment will not be implemented directly following the notification of this decision to the defendant.

31 K. WAGNER, *Dwangsom*, Brussels, Story-Scientia, 2003, §7. Original language excerpt: “Zij [de dwangsom] is als prikkel tot nakoming nooit bedoeld om daadwerkelijk te worden verbeurd...”. Free translation as follows: “It [the penalty payment] has never been intended to, in that it constitutes an incentive to execution...”. The Contentious Chamber specifies here that although the penalty payment referred to in the aforementioned work pertains to that used in civil law, and is therefore to be distinguished from the administrative penalty payment referred to by the LCA, it still considers it relevant to refer to it in order to better legally frame the administrative penalty payment referred to by the LCA.

32 Ibid., §20.

33 In this sense, see, *mutatis mutandis*, K. WAGNER, *op. cit.*, §.6. Original language excerpt: “Het doel van de dwangsom is de rechtstreekse uitvoering van de verbintenissen te waarborgen...”. Free translation as follows: “The penalty payment aims to ensure the execution of obligations...”.

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119. In this case, the Contentious Chamber considers that a period of 45 days from the notification of this decision is sufficient to allow the defendant to comply with the said injunctions.

120. The period begins from the day the defendant receives the registered letter notifying them of this decision or the day of the expiration of the period during which the defendant is, if applicable, required to collect said registered letter at the post office.

121. The day after the expiration of this period, the Contentious Chamber notifies the defendant:

- 1) That the defendant has fully complied with the injunctions pronounced in this decision; or
- 2) That the defendant has partially complied with the injunctions pronounced in this decision; or
- 3) That the defendant has not complied with the injunctions pronounced in this decision.

The Contentious Chamber initiates the execution of the penalty payment on the same day as this notification in the second and third scenarios.

122. The amount of the penalty payments is as follows:

- a) Injunction 1: the defendant must pay 20,000 EUR per day of delay from the day the Contentious Chamber notifies them that they have partially or not at all complied with the injunctions pronounced in this decision;
- b) Injunction 2: the defendant must pay 20,000 EUR per day of delay from the day the Contentious Chamber notifies them that they have partially or not at all complied with the injunctions pronounced in this decision.

If the defendant fails to satisfy both injunctions, they must then pay 40,000 EUR per day of delay from the day the Contentious Chamber notifies them that they have partially or not at all complied with the injunctions pronounced in this decision.

123. The Contentious Chamber recalls, as it did in point 112, that the penalty payment does not have a punitive character. The injunctions are each accompanied by a penalty payment to ensure their proper execution. The amount of the penalty payments is reasonable in light of the infringement caused by the defendant to the rights of the complainant, and to users more broadly, but also in light of the financial capacity³⁴ of the defendant and the benefit they may derive from non-compliance with the injunctions in question.

34 In the fiscal year 2023, the defendant achieved a turnover of 225,063,613 EUR. See in this regard <https://consult.cbso.nbb.be/consult-enterprise>.

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filed with the registry of the Court of Markets in accordance with Article 1034quinquies of the Judicial Code, or

via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(sé). Hielke HIJMANS
President of the Litigation Chamber

36 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry.